

has occurred. (Suard Decl. at ¶¶ 6-15, Exs. C-H.) Plaintiff states in her opposition that she provided a date for the inspection (August 6, 2026), so the motion is moot. However, Defendant advises that its expert was not available for the one date provided by Plaintiff, so the inspection has still not occurred. Furthermore, the purported date is more than a year after the date originally noticed, and Plaintiffs only agreed to the inspection well after this motion had been filed. (Decl. of Daniel Louis at ¶ 4.)

Since the inspection has not occurred as of the time of this hearing, and no date has been mutually agreed upon, the **motion is granted**. (C.C.P. 2031.300(a).) Plaintiff is ordered to produce the Vehicle for inspection on a mutually agreeable date on or before August 31, 2026. Defendant is also to be awarded sanctions in the reduced but reasonable amount of \$460 (\$400/hour x 1 + \$60 filing fee) because it was forced to file this motion in order to get a response from Plaintiff regarding the inspection. (C.C.P. §2031.300(c).)

Summary:

Grant the motion. Order Plaintiff to produce the Vehicle for inspection on a mutually agreeable date on or before August 31, 2026. Award sanctions in the reduced but reasonable amount of \$460 (\$400/hour x 1 + \$60 filing fee) to Defendant payable within 30 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX vs COUNTY OF RIVERSIDE	MOTION TO STAY CIVIL ACTION OR FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendants County of Riverside and Deputy Glynn Allen Wilburn

Responding party: Plaintiffs Madeline Fox, by and through her guardian ad litem, Melissa Fox, Lauren Hinkley, individually and as successor-in-interest to Gavin Hinkley, Cory Hinkley, individually and as successor-in-interest to Gavin Hinkley, and the Estate of Gavin Hinkley, by and through successors-in-interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action. Plaintiff Madeline Fox, by and through her guardian Melissa Fox (collectively, "Plaintiff"), alleges that on 9/6/25, Defendant Glynn Allen Wilburn, a County of Riverside sheriff's deputy, drove a County patrol vehicle in the course and scope of his employment at more than 100 miles per hour. Plaintiff alleges that Wilburn approached a red light and was traveling 98.1 miles per hour just 2 seconds before the crash. Defendant struck the left side of a Tesla that was allegedly making a lawful left turn. The crash killed the Tesla's driver, 21-year-old Gavin Hinkley, and caused permanent brain injuries to his passenger and fiancée, Madeline Fox. They

were set to be married a month after the crash and were running errands for their wedding at the time of the crash.

Madeline Fox sues through her guardian ad litem. Lauren Hinkley and Cory Hinkley sue individually as Gavin Hinkley's surviving parents and as successors in interest to his estate. They also appear for the Estate of Gavin Hinkley. Plaintiffs name the County, deputy Wilburn, Southern California Edison Company ("SoCal Edison"), the City of Beaumont, the City of Calimesa, and American Medical Response of Southern California as Defendants.

The operative First Amended Complaint ("FAC"), filed on 4/30/26, asserts: (1) negligence; (2) dangerous condition of public property; (3) negligence (against SoCal Edison); (4) negligence (failure to protect and voluntary undertaking); (5) negligence (against American Medical Response); (6) bad faith/gross negligence in emergency dispatch; and (7) wrongful death.

The dangerous-condition claim concerns sight distance limitations, utility boxes and equipment, roadway slope, and traffic and/or warning signals, signs, markings, and controls. The SoCal Edison negligence claim concerns the design, maintenance and control of utility equipment. The American Medical Response claim concerns the timing of aid and transport. The bad faith/negligence dispatch claim concerns the timing of dispatch of life support personnel.

On 6/16/26, SoCal Edison filed a cross-complaint for (1) total equitable indemnity, (2) contribution, (3) apportionment of fault, and (4) declaratory relief against Roes Defendants.

Now, Defendants County and Wilburn move to stay the proceedings pending resolution of the criminal prosecution against Wilburn (case no. FEBA2600881). They argue that the civil action and the pending criminal prosecution arise from the same 9/6/25 motor vehicle accident and there is significant overlap between the two cases. They contend that civil discovery would force Wilburn to choose between invoking his privilege against self-incrimination and defending himself in this action. They further argue that Wilburn's invocation of his 5th amendment rights would impair the County's ability to defend this action. Defendants contend that there is no prejudice to Plaintiffs by a stay and that no third-party interests will be harmed. Alternatively, they request a protective order staying discovery as to Wilburn and the County until the criminal action concludes.

In opposition, Plaintiffs argue that only Wilburn faces criminal charges. Since the five entity defendants have no privilege against self-incrimination, they cannot borrow Wilburn's personal privilege. Plaintiffs state that they have granted Wilburn in writing an open extension of every discovery deadline and will not depose him while his criminal case is pending. They contend that four of the causes of action name no individual defendant and concern independent roadway conditions, utility facilities, emergency dispatch, and emergency response, which can proceed without Wilburn. They contend that an indefinite stay invites the loss of electronically stored evidence and witnesses' memories. Plaintiffs ask the Court to deny the motion and vacate the interim discovery

stay. Alternatively, they request to stay only discovery directed personally to Wilburn, allow all other discoveries to proceed, and require preservation of electronic emergency-response records.

In reply, Defendant Wilburn requests, at minimum, a protective order to: (1) stay all discoveries directed at him; (2) relieve him from any obligation to participate in discovery; and (3) confirm Plaintiffs' unlimited extension to answer all written discoveries. On the other hand, Defendant County argues that it cannot meaningfully investigate or defend the claims without the ability to communicate with Wilburn. The County states that it will preserve electronic evidence and proposes setting status conferences if the action is stayed.

Analysis

Individuals who are subject to criminal proceedings are entitled to a stay of discovery in the civil action until the criminal matter was disposed of. (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) "Staying civil discovery to await the outcome of a related criminal case might benefit the litigants and does not implicate constitutional issues. [citations.] However, courts are guided by the strong principle that any elapsed time other than that reasonably required for pleadings and discovery 'is unacceptable and should be eliminated.' [citation.] Courts must control the pace of litigation, reduce delay, and maintain a current docket so as to enable the just, expeditious, and efficient resolution of cases." The focus is "from the standpoint of fairness, not from any constitutional right." (*Fuller v. Superior Court* (2001) 87 Cal.App.4th 299, 306-307.)

As stated by *People ex rel. Harris v. Rizzo* (2013) 214 Cal.App.4th 921, 951-952, the court looks to the following factors: (1) the interest of the party opposing the stay in proceeding expeditiously, and potential prejudice; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases.

Here, there is no basis to stay the entire litigation. Wilburn is the only defendant facing criminal charges. The County and the other entity defendants have no privilege against self-incrimination. Several claims concern their independent conduct, including the alleged dangerous condition of the intersection, SoCal Edison's utility equipment, emergency dispatch, and the emergency medical response. Those may be investigated without compelling testimony from Wilburn. There is no reason to stay all discovery. Wilburn's criminal negligence is not relevant to determine whether or not there is a dangerous condition to begin with. As stated in *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1348:

A public entity may be liable for a dangerous condition of public property even where the immediate cause of plaintiff's injury is a third party's negligent or illegal act [...] if some physical characteristic of the property

exposes its users to increased danger from third party negligence or criminality. [Citation.] But it is insufficient to show only harmful third-party conduct, like the conduct of a motorist. “ ‘[T]hird-party conduct, by itself, unrelated to the condition of the property, does not constitute a “dangerous condition” for which a public entity may be held liable.’ ” [Citation.] There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third-party conduct that injures the plaintiff. [Citation.] “[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has ‘increased or intensified’ the danger to users from third party conduct.”

Plaintiffs have to prove that the public property is dangerous irrespective of Wilburn’s criminal negligence. Therefore, Plaintiffs should be provided the opportunity to propound discovery on this issue. The burden on imposing an entire stay on the case would allow discovery to stagnate and potential witnesses to forget information. If and when Wilburn asserts the Fifth Amendment, the court can address those issues when they arise.

Plaintiffs’ counsel also confirmed on 6/22/26 via e-mail that Plaintiffs did not plan to take discovery, such as Wilburn’s deposition, that could implicate the privilege. (Reagan Decl., ¶ 4.) On 7/21/26, Plaintiffs granted Wilburn an “open extension of every deadline for discovery” directed at him and again confirmed that they would not notice his deposition “in the near term.” (*Id.*, ¶ 7.) As the records show, Wilburn has no present obligation to answer any discoveries.

The County argues that it cannot adequately defend this action without communicating with Wilburn. It may however object to a particular request on ordinary discovery grounds or seek a request-specific protective order if answering would require privileged testimony. A generalized reference to Wilburn’s 5th amendment rights does not establish good cause to suspend all discovery. Nor have the other entity defendants moved for protection.

As such, the motion is denied.